

25TRCV02169 25TRCV02169

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25TRCV02169 Hearing Date: August 18, 2026 Dept: P

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. P

LAUREN PERALEZ,¿

Plaintiff

Case No.:

25TRCV02169

vs.

[Tentative] RULING RE:¿¿

MOTION TO QUASH SERVICE OF SUMMONS ON CROSS-COMPLAINT FOR LACK OF PERSONAL JURISDICTION

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LYONS AIRCRAFT LLC; BARRINGTON MILES,¿

¿

Defendants.

LYONS AIRCRAFT LLC,

vs.

BARRINGTON K MILES; D AND G SUPPLY; and ROES 1-20, inclusive,

Cross-Complainant,

Cross-Defendants.

Hearing Date: August 18, 2026

Department P, Judge David K. Reinert

Motion to Quash Service of Summons on Cross-Complaint for Lack of Personal Jurisdiction

Moving Party: Defendant and Cross-Defendant Barrington Miles

Responding Party: None

RULING

The court considered the moving papers. The Motion to Quash is GRANTED.

PROCEDURAL BACKGROUND

On July 1, 2025, Plaintiff Lauren Peralez ("Plaintiff") filed a complaint against Lyons Aircraft LLC ("Lyons") and Barrington Miles ("Miles"), alleging two causes of action for (1) Negligence and (2) Strict Products Liability.

On September 22, 2025, Miles filed a motion to quash service of summons for lack of personal jurisdiction regarding Plaintiff's complaint. On November 12, 2025, the court granted the motion and denied Plaintiff's request for leave to conduct jurisdictional discovery.

On October 7, 2025, Lyons filed a cross-complaint against Cross-Defendants Miles, D and G Supply, and ROES 1 through 20, inclusive, alleging five causes of action for: (1) Express and/or Equitable Indemnification; (2) Apportionment of Fault; (3) Contribution; (4) Indemnity; and (5) Contribution.

On June 25, 2026, Miles filed the instant motion regarding the Cross-Complaint.

FACTUAL BACKGROUND

Plaintiff alleges that on July 23, 2023, a Beech H3 airplane, N365B, (the "Subject Airplane") was substantially damaged when it was involved in an accident near Georgetown, Texas. (Complaint, ¶ 8.) Plaintiff alleges that the pilot, Miles, and two passengers, including Plaintiff, also suffered significant injuries. (Complaint, ¶ 8.) Plaintiff alleges that Miles reported that the run-up, takeoff, climb out, and cruise portion of the return flight proceeded normally, but when he attempted to increase engine power for landing, the engine did not respond. (Complaint, ¶ 10.)

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Plaintiff alleges that airplane maintenance records revealed that the fuel pump was replaced with an overhauled unit about 18 months prior to the accident by Lyons. (Complaint, ¶ 13.) Plaintiff alleges that, upon information and belief, the fuel pump contained improper, nonstandard, and unauthorized parts and was not properly adjusted by Lyons when put back on the airplane engine. (Complaint, ¶ 13.)

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Plaintiff alleges that Miles purchased the Subject Airplane from a California seller about one month before the accident. (Complaint, ¶ 9.) Plaintiff alleges that the Subject Airplane was flown from California to Texas by a friend of Miles. (Complaint, ¶ 9.)

Lyons alleges in its cross-complaint that "had Miles kept or returned the Aircraft in the prescribed maximum glide configuration, the Aircraft would have glided to the cleared surface of the airport environment, if not the hard surface runway Miles was attempting to reach. (Cross-Complaint, ¶ 14.) Lyons alleges that Miles "failed to enrichen the fuel/air mixture ahead of landing at Georgetown Executive Airport," and Miles did not 'sump' the fuel tanks on the Aircraft prior to the accident flight." (Cross-Complaint, ¶¶ 15-16.) Lyons alleges that there were no mechanical anomalies present in the Subject Airplane's engine, fuel pump, or metering valve that would have caused the accident. (Cross-Complaint, ¶ 17.)

LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc. Section 418.10(a).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc. Section 581(h).) ; ;

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"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc. Section 410.10.) The exercise of personal jurisdiction is constitutionally permissible only if the defendant has sufficient "minimum contacts" with the forum state so that the exercise of jurisdiction "does not offend 'traditional notions of fair play and substantial justice.'" (Internat. Shoe Co. v. Washington (1945) 326 U.S. 310, 316; accord, Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 268.) The defendant's contacts with the forum state must be such that the defendant had "fair warning" that its activities might subject it to personal jurisdiction in the state. (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 472.) "In judging minimum contacts, a court properly focuses on 'the relationship among the defendant, the forum, and the litigation.'" (Calder v. Jones (1984) 465 U.S. 783, 788.)

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"A plaintiff opposing a motion to quash service of process for lack of personal jurisdiction has the initial burden to demonstrate facts establishing a basis for personal jurisdiction." (HealthMarkets, Inc. v. Superior Court, (2009) 171 Cal.App.4th 1160, 1167.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

DISCUSSION

Moving Party's Argument

Miles argues that he lacks the requisite minimum contacts with California to justify being hailed into court in California. Miles argues that the court lacks general jurisdiction over him because he is not a citizen of California or a resident in California. Miles argues that the court lacks specific jurisdiction over him because there is no factual nexus between the accident in Texas involving Miles and the state of California.

Request for Judicial Notice

Miles requests that the court take judicial notice of Miles's September 22, 2025 motion to quash service of summons for lack of personal jurisdiction and the court's minute order regarding the motion.

The court may take judicial notice of its own records pursuant to Evidence Code Section 452(d). Accordingly, Miles's request for judicial notice is GRANTED in its entirety.

Merits of the Motion

General Jurisdiction

"A court may assert general jurisdiction over foreign (sister-state or foreign-country) defendants to hear any and all claims against them when their affiliations with the State are so "continuous and systematic" as to render them essentially at home in the forum State." (Goodyear Dunlop Tires Operations, S.A. v. Brown, (2011) 564 US 915, 919.) The cause of action need not be related to the defendant's contacts. (Thomson v. Anderson, (2003) 113 Cal.App.4th 258, 265-266.)

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Here, Miles declares the following: Miles (1) does not maintain any address or mailbox in California; (2) does not own any real estate in California; (3) does not own any bank account, trust, safe deposit box, or other monetary asset in California; (4) does not own or keep any personal property in California; (5) does not lease any properties or storage units in California; (6) has not conducted any business in California in the last ten years; and (7) has never sold anything to anyone in California. (Miles Decl., ¶¶ 2-8.) Miles also declares that he resides in Austin, Texas. (Miles Decl., ¶ 11.)

The court finds that Miles's evidence indicates that he is not "at home" in California, such that the court lacks general jurisdiction over Miles.

Specific Personal Jurisdiction

If a nonresident defendant's contacts with California are insufficient for general jurisdiction, the nonresident may be subject to specific jurisdiction if: (1) the nonresident has purposefully availed itself of the benefits and protections of the state's laws; (2) the controversy arises out of the nonresident's contacts with the state; and (3) it would be fair and just to assert jurisdiction. (Burger King Corp. v. Rudzewicz⁴ (1985) 471 U.S. 462, 472; ⁵Pavlovich v. Superior Court⁶ (2002) 29 Cal.4th 262, 268.)

Miles argues that the court lacks specific jurisdiction over him because Miles has not purposefully availed himself of the benefits of California's laws, there is no substantial connection between Miles's alleged activities in California and Lyons's claims, and the exercise of specific personal jurisdiction over Miles would not comport with traditional notions of fair play and substantial justice.

The court agrees. Miles declares that when he purchased the Subject Airplane, he "did not travel to California to pick it up. Rather, it was flown and transported to Texas by a friend of [his]." (Miles Decl., ¶ 9.) Miles further declares that he did not travel to California to see the Subject Airplane before purchasing it, but rather "saw the airplane on www.controller.com where it was listed for sale," after which Miles purchased the Subject Airplane in Texas. (Miles Decl., ¶ 10.)

As Miles points out, the Cross-Complaint incorporates by reference the allegations of Plaintiff's Complaint, which alleges that the Subject Airplane was flown from California to Texas by a friend of Miles. (Cross-Complaint, ¶ 5; Complaint, ¶ 9.) The court finds that Lyons has not met its burden of establishing a basis for specific personal jurisdiction over Miles.

Accordingly, the Motion to Quash is GRANTED.

CONCLUSION

Based on the foregoing, the Motion to Quash is GRANTED.

Moving party is ordered to give notice of ruling.